



POLICE DEPARTMENT

October 18, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208690 (Incident Date: April 26, 2022) regarding Sergeant Ariel Cruz, Tax No. 951644 (DADS No. 2023-28786), and Police Officer Carolyn Daley, Tax No. 967471 (DADS No. 2023-28787)

Dear Mr. Darche:

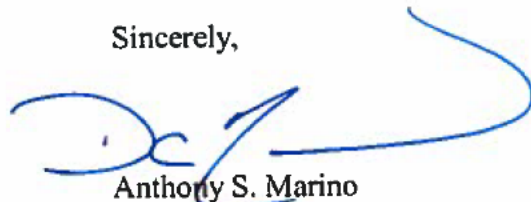
The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202208690, pertaining to Sergeant Ariel Cruz and Police Officer Carolyn Daley. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said members of the service would be detrimental to the Police Department's disciplinary process, in that the misconduct in this matter does not warrant that level of discipline.

The Police Commissioner agrees with CCRB in that Police Officer Daley performed an improper stop, and that Sergeant Cruz performed an improper stop and frisk. However, the Police Commissioner deemed CCRB's application of the Department's Disciplinary System Penalty guidelines to be inappropriate. The presumptive penalties associated with this misconduct would not justify the inquisition of charges and specifications.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice intends to retain jurisdiction over this matter, and direct the issuance of a Schedule "A" Command Discipline for Sergeant Cruz for violating Patrol Guide Procedure 212-11 (Investigative Encounters/Stop and Frisk).

Furthermore, the Police Commissioner intends to impose formalized training for Police Officer Daley relating to Patrol Guide Procedure 212-11 (Investigative Encounters/Stop).

Sincerely,

A handwritten signature in blue ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
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ARVA RICE
INTERIM CHAIR

October 24, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202208690 v. Sergeant Ariel Cruz and Police Officer Carolyn Daley
Disciplinary Case No.: 2023-28786 and 2023-28787

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Andrew Marino, dated October 18, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to impose a recommended penalty of a Command Discipline Schedule A for Sergeant Cruz and a recommended penalty of formalized training for Police Officer Daley for the Charges and Specifications in these matters. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Marino stated that after reviewing the recommendation of the CCRB, you determined that the recommended penalty of a Command Discipline Schedule A for Sergeant Cruz and the recommended penalty of training for P.O. Daley is appropriate and does not require the imposition of charges & specifications against either member of the service.

CCRB is permitted to resolve APU cases for levels of discipline below that of Charges and Specifications. If CCRB were to resolve Sergeant Cruz’s and P.O. Daley’s matters and the members of service accept responsibility for their misconduct, then CCRB would move to dismiss the charges itself and recommend a penalty of Command Discipline with the forfeiture of Three (3) vacation days for each member of service.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

October 25, 2023

Re: CCRB Case No. 202208690 (Incident Date: April 26, 2022) regarding Sergeant Ariel Cruz, Tax No. 951644 (DADS No. 2023-28786), and Police Officer Carolyn Daley, Tax No. 967471 (DADS NO. 2023-28787)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated October 24, 2023, regarding the CCRB cases involving Sergeant Ariel Cruz and Police Officer Carolyn Daley, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Cruz and Police Officer Daley, for the reasons expressed in my October 18, 2023 letter.

Therefore the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Sergeant Cruz be issued a Schedule "A" Command Discipline for violating Patrol Guide Procedure 212-11 (Investigative Encounters/Stop and Frisk) and Police Officer Daley receive formalized training relating to Patrol Guide Procedure 212-11 (Investigative Encounters/Stop), in accordance with the Police Commissioner's direction.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office